



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1684: school liability; bullying; serious injury

GRESS FLOOR AMENDMENT

1. Specifies an act of alleged bullying occurs at school if the act:
 - a. occurs while the injured student and the student who commits the act of alleged bullying are on school grounds, on school property, on a school bus, at a school bus stop, at a school-sponsored event or a school-sponsored activity; or
 - b. is committed through the use of electronic technology or electronic communication on a school computer, network, forum or mailing list.
2. Defines *bullying* as any of the following that places a student in actual and reasonable fear of harm to the student's person or damage to the student's property:
 - a. a pattern of gestures of written, electronic or verbal communications;
 - b. a physical act; or
 - c. a threatening communication.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1684
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-120.08, to read:

4 15-120.08. School liability: bullying: serious physical
5 injury; court action; definitions

6 A. A STUDENT OR A STUDENT'S PARENT MAY BRING A CAUSE OF ACTION
7 AGAINST A PUBLIC SCHOOL FOR DAMAGES CAUSED BY THE SCHOOL'S FAILURE TO
8 ADDRESS A THREAT TO THE STUDENT'S SAFETY IF ALL OF THE FOLLOWING APPLY:

9 1. THE STUDENT SUFFERS SERIOUS PHYSICAL INJURY AS A RESULT OF
10 ~~[BULLYING BY]~~ ANOTHER STUDENT [BULLYING THE INJURED STUDENT ~~{{ON}}~~ ~~{{AT}}~~
11 SCHOOL ~~{{PROPERTY OR AT A SCHOOL-SPONSORED EVENT OR ACTIVITY}}]~~.

12 2. THE SCHOOL OR AN EMPLOYEE OF THE SCHOOL, INCLUDING AN INDIVIDUAL
13 WHO IS INDIRECTLY EMPLOYED THROUGH A THIRD-PARTY CONTRACTOR, RECEIVES AT
14 LEAST ONE PRIOR REPORT THAT THE OTHER STUDENT COMMITTED AN ACT OF BULLYING
15 AGAINST THE INJURED STUDENT ~~[{{ON}} {{AT}} SCHOOL~~ ~~{{PROPERTY OR AT A~~
16 ~~SCHOOL-SPONSORED EVENT OR ACTIVITY}}]~~.

1 3. THE SCHOOL NEGLIGENTLY FAILED TO ADDRESS THE SUSPECTED ACT OF
2 BULLYING COMMITTED BY THE OTHER STUDENT AND AGAINST THE INJURED STUDENT
3 AFTER RECEIVING A PRIOR REPORT.

4 {{B. AN ACT OF ALLEGED BULLYING OCCURS AT SCHOOL FOR THE PURPOSES
5 OF SUBSECTION A OF THIS SECTION IF THE ACT EITHER:

6 1. OCCURS WHILE THE INJURED STUDENT AND THE STUDENT WHO COMMITS THE
7 ACT OF ALLEGED BULLYING ARE ON SCHOOL GROUNDS, ON SCHOOL PROPERTY, ON A
8 SCHOOL BUS, AT A SCHOOL BUS STOP, AT A SCHOOL-SPONSORED EVENT OR AT A
9 SCHOOL-SPONSORED ACTIVITY.

10 2. IS COMMITTED THROUGH THE USE OF ELECTRONIC TECHNOLOGY OR
11 ELECTRONIC COMMUNICATION ON A SCHOOL COMPUTER, NETWORK, FORUM OR MAILING
12 LIST.}}

13 ~~{{B.}}~~ {{C.}} THE COURT MAY AWARD REASONABLE ATTORNEY FEES,
14 EXPENSES AND DAMAGES TO ANY CLAIMANT WHO SUBSTANTIALLY PREVAILS IN AN
15 ACTION BROUGHT PURSUANT TO THIS SECTION.

16 ~~{{C.}}~~ {{D.}} FOR THE PURPOSES OF THIS SECTION~~[:]~~ [:]

17 {{1. "BULLYING" MEANS ANY OF THE FOLLOWING THAT PLACES A STUDENT IN
18 ACTUAL AND REASONABLE FEAR OF HARM TO THE STUDENT'S PERSON OR DAMAGE TO
19 THE STUDENT'S PROPERTY:

20 (a) A PATTERN OF GESTURES OR WRITTEN, ELECTRONIC OR VERBAL
21 COMMUNICATIONS.

22 (b) A PHYSICAL ACT.

23 (c) A THREATENING COMMUNICATION.}}

24 ~~{{1.}}~~ {{2.}} "PRIOR REPORT" INCLUDES:

25 [1.] [(a)] A WRITTEN ~~[OR VERBAL]~~ REPORT THAT ANY INDIVIDUAL MAKES
26 TO AN EMPLOYEE OF THE SCHOOL.

27 [2.] [(b)] A SCHOOL EMPLOYEE'S PERSONAL OBSERVATION OF CONDUCT
28 THAT THE EMPLOYEE REASONABLY BELIEVES CONSTITUTES AN ACT OF BULLYING.

29 [~~2.~~] {{3.}} "SERIOUS PHYSICAL INJURY" HAS THE SAME MEANING
30 PRESCRIBED IN SECTION 13-105.]

31 Enroll and engross to conform

32 Amend title to conform

MATT GRESS

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